



POLICE DEPARTMENT

June 21, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208866 (Incident Date: December 28, 2022) regarding Sergeant Michael Nolasco, Tax No. 958992 (DADS No. 2024-30747)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208866, pertaining to Sergeant Michael Nolasco. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Sergeant Nolasco would be detrimental to the Police Department's disciplinary process.

In this case, the CCRB substantiated four allegations against Sergeant Nolasco (who was in the rank of Police Officer at the time) for taking a photograph of the complainant's identification, threatening to issue a summons to the complainant, interfering with the complainant's use of a recording device, and failing to give the complainant a business card. There is no policy against Sergeant Nolasco's actions underlying the first allegation. Sergeant Nolasco had probable cause for enforcement action underlying his threat to summons. The complainant can be seen on body-worn camera recording the entire interaction and Sergeant Nolasco made no efforts to stop the complainant from recording. Finally, Sergeant Nolasco stopped the complainant based on probable cause and was not required to offer a business card. For these reasons, the Police Commissioner finds that Sergeant Nolasco's actions were within guidelines and discipline is unwarranted.

Sergeant Nolasco has no prior substantiated CCRB complaints and no formal discipline. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action for the allegations against Sergeant Nolasco.

Sincerely,

A handwritten signature in black ink, appearing to read 'A. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 27, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208866 (Incident Date: December 28, 2022) regarding Sergeant Michael Nolasco, Tax No. 958992 (DADS No. 2024-30747)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, June 21, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

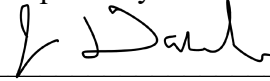
Deputy Chief Marino stated that after reviewing the request for Charges and Specifications, you determined that to pursue said charges against Sergeant Nolasco would be detrimental to the Police Department’s disciplinary process. Consequently, you determined that Sergeant Nolasco’s actions were within guidelines and any discipline unwarranted.

We disagree with your determination that Sergeant Nolasco’s conduct does not warrant the serving of Charges and Specifications. As an initial matter, while Sergeant Nolasco’s initial photographing of the complainant’s identification was not per se a violation of procedure, his use of that photograph was. Here, Sergeant Nolasco attempted to interfere with the complainant’s lawful recording of law enforcement activity on a public street, by photographing the complainant’s identification and subsequently threatening to issue multiple summons. The mere fact the complainant was able to successfully capture the interaction does not make Sergeant Nolasco’s interference permissible.

Finally, even if Sergeant Nolasco had probable cause to stop the complainant, that did not relieve the officer of his duty to provide a business card. New York City Administrative Code §14-174 provides that “during a law enforcement activity,” an officer shall “offer a business card to such person at the conclusion of any such activity that does not result in an arrest or summons.” Absent an arrest, SGT Nolasco was required to, but ultimately failed to provide a business card to the complainant.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, the CCRB respectfully requests that you permit the disciplinary process against Sergeant Nolasco to proceed.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'J. Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

June 28, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208866 (Incident Date: December 28, 2022) regarding Sergeant Michael Nolasco, Tax No. 958992 (DADS No. 2024-30747)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 27, 2024, concerning the Civilian Complaint Review Board (“CCRB”) case involving Sergeant Michael Nolasco. Nevertheless, he maintains that it would be detrimental to the Police Department’s disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Sergeant Nolasco for the reasons expressed in my June 21, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed for the allegations against Sergeant Nolasco.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner’s Office